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Case Summary Report

User Problem: The user reports that their brother has evicted them from their home and subsequently taken illegal possession of the property. This appears to be a property dispute between siblings over inherited property.

Case Category + Confidence: Property Dispute (100%)

Rights Summary:

- * Right to property and peaceful possession.
- * Right to seek legal remedy against illegal eviction and encroachment.
- * Right to fair resolution in inherited property matters.

Readiness Score with Breakdown: 60/100

- * Ownership documents (registry/inteqal): Yes (user has registry, but it's in user's or brother's name).
- * Proof of possession: Yes (user previously resided there).
- * Proof of inheritance: Yes (inherited from parents).
- * Consulted a lawyer: No (Missing information, lowers readiness).

Missing Documents with Costs:

- * Legal Consultation with a lawyer: Approximately PKR 5,000 - 20,000 for initial advice and case evaluation.
- * Official certified copy of the property registry: Costs vary, typically PKR 500 - 2,000.
- * Family tree/succession certificate (if required for inherited property issues): Costs vary, typically PKR 5,000 - 15,000.

Key Risks Highlighted:

- * Lack of legal consultation could lead to incorrect legal actions or missing crucial procedural steps.
- * Potential for escalation of family dispute, making resolution more challenging.
- * Risk of adverse possession claim by the brother if legal action is not taken promptly.
- * Difficulty in proving sole ownership if the registry is in both names.

Retrieved Statutory Laws and Court Procedures:

1. Specific Relief Act, 1877 Section 8: 'Suit by person dispossessed of immovable property.' This section allows a person who has been dispossessed of immovable property without their consent to recover possession through a suit.
2. Specific Relief Act, 1877 Section 9: 'Suit by person dispossessed of immovable property whose title is not proved.' Similar to Section 8, this allows recovery of possession, but focuses on possession itself rather than proving title.
3. Pakistan Penal Code, 1860 Section 441 (Criminal Trespass): 'Whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit

an offence, is said to commit "criminal trespass". If the brother's actions involved force or unlawful entry with malicious intent, this section might apply.

4. Pakistan Penal Code, 1860 Section 447 (Punishment for criminal trespass): Prescribes punishment for criminal trespass.

5. Code of Civil Procedure, 1908 Order XXI Rule 97 (Resistance to delivery of possession to decree-holder): Deals with situations where a decree-holder is resisted in obtaining possession of immovable property and allows for inquiry into the matter.

6. Transfer of Property Act, 1882 Section 44: Deals with transfer by one co-owner and specifies the rights of the transferee in such cases. If the property is jointly owned, this section might be relevant.

7. Qanun-e-Shahadat Order, 1984: Governs the law of evidence in Pakistan, including the admissibility of documents like registry and fard to prove ownership and possession.

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